

**SUBSTITUTE FOR
HOUSE BILL NO. 4898**

A bill to amend 2016 PA 407, entitled
"Skilled trades regulation act,"
by amending section 941 (MCL 339.5941) and by adding sections 928,
928a, and 928b.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 928. (1) For purposes of this article, boiler repairer**
2 **licenses are classified as follows:**

3 **(a) Class I.**

4 **(b) Class III.**

5 **(c) Class IV.**

6 **(d) Class V.**

7 **(e) Class P.**

8 **(2) Beginning on the effective date of the amendatory act that**



1 added this section, an individual who has a class II license issued
2 by the department is considered to have a class III license under
3 this article.

4 Sec. 928a. (1) The director shall not issue a license for a
5 boiler repairer described under section 928 unless the applicant
6 meets the requirements that are applicable to the classification of
7 license for which the applicant is seeking licensure, as prescribed
8 by rule.

9 (2) Subject to subsection (3), the department shall promulgate
10 rules to determine the requirements for each boiler repairer
11 license classification described in section 928 under the
12 administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to
13 24.328.

14 (3) The department shall not issue a class V license to an
15 applicant unless the applicant submits evidence of both of the
16 following:

17 (a) Familiarity with and knowledge of federal rules and
18 regulations applicable to the erection and repair of boilers that
19 utilize a nuclear heat source.

20 (b) Employment by a company in possession of a valid ASME N-
21 type symbol stamp applicable to the portions of any nuclear boiler
22 system the applicant proposes to repair.

23 Sec. 928b. (1) An individual who is issued a class I license
24 under this article may repair a boiler by means other than welding.

25 (2) An individual who is issued a class III license under this
26 article may do all of the following:

27 (a) Repair a low-pressure boiler, a hot water supply boiler,
28 and a fire tube boiler of any pressure.

29 (b) Repair a high-pressure boiler.



1 (c) Repair or replace non-boiler external piping.

2 (d) Perform work covered by a class I license.

3 (3) An individual who is issued a class IV license under this
4 article may do all of the following:

5 (a) Repair or field-erect a boiler of any pressure, except for
6 a boiler that has a nuclear heat source.

7 (b) Repair or replace non-boiler external piping.

8 (c) Perform work covered by a class III license.

9 (4) An individual who is issued a class V license under this
10 article may do all of the following:

11 (a) Erect and repair a boiler that has a nuclear heat source
12 or the parts, source, appurtenances, or system components of a
13 boiler that has a nuclear heat source.

14 (b) Repair or replace non-boiler external piping.

15 (c) Perform work covered by a class IV license.

16 (5) An individual who is issued a class P license under this
17 article may install or repair non-boiler external piping.

18 (6) As used in this section, "non-boiler external piping"
19 means piping, valves, fittings, and appurtenances that are external
20 to a boiler and not part of the boiler proper or boiler external
21 piping, as further defined by the department by rule through
22 adoption of nationally recognized power-piping standards.

23 Sec. 941. A person shall not repair a boiler without first
24 obtaining a permit to repair the boiler from ~~the boiler division of~~
25 the department, unless the repair has been authorized by a licensed
26 inspector pending issuance of the permit, or the repair is
27 emergency maintenance performed by qualified welders regularly
28 employed by a person that utilizes properly qualified welding
29 procedures to weld on boilers owned and operated by the person. All



1 of the following apply for purposes of the permit to repair
2 requirement under this section:

3 (a) A person is not eligible for a permit if the person is not
4 licensed to repair boilers under ~~this article.~~**section 928a.**

5 (b) An individual shall not perform work for which a permit is
6 required unless ~~he or she~~**the individual** is licensed to repair
7 boilers under ~~this article,~~**section 928a,** or ~~he or she~~**the**
8 **individual** performs the work under the immediate supervision of an
9 individual who is licensed to repair boilers under ~~this~~
10 ~~article.~~**section 928a.**

11 (c) A person shall obtain a permit by submitting an
12 application to the department and including with the application a
13 permit fee in an amount established by the department under article
14 4. However, a person is not required to pay a permit fee if the
15 person utilizes properly qualified welding procedures and regularly
16 employs qualified welders, registered with ~~the boiler division of~~
17 the department, to weld on boilers owned and operated by the
18 person.